

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Marisa Berwald	Team: Team # 8	CCRB Case #: 200803814	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Friday, 03/14/2008 2:30 AM	Location of Incident: § 87(2)(b)	Precinct: 52	18 Mo. SOL 9/14/2009	EO SOL 9/14/2009	
Date/Time CV Reported Fri, 03/14/2008 6:06 PM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Fri, 03/14/2008 6:06 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Maurice Harrington	06286	934992	052 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. An officer			052 PCT

Officer(s)	Allegation	Investigator Recommendation
A.POM Maurice Harrington	Abuse: PO Maurice Harrington questioned § 87(2)(b)	§ 87(2)(b)
B.POM Maurice Harrington	Discourtesy: PO Maurice Harrington spoke rudely to § 87(2)(b)	§ 87(2)(b)

Synopsis

§ 87(2)(b) made a complaint to the CCRB on March 14, 2008, via the online website. She was contacted by phone on March 19, 2008 and provided additional details. On March 14, 2008, at 2:30AM, at § 87(2)(b) in the Bronx, § 87(2)(b) heard a knock at her door. It was two police officers, one of which was named PO Harrington, badge number 6386. She described him as a black male with a small build. The officers informed § 87(2)(b) that they received a report of child abuse. § 87(2)(b)'s children were sleeping when the officers came in. Her daughter started crying and § 87(2)(b) asked if she could get her. PO Harrington said that she was not allowed to touch her children. Her child came to her. PO Harrington asked for identification. He said, "I need some fucking ID from you and some fucking ID from your children." (**Allegation A and B**) When § 87(2)(b) showed him her benefits card PO Harrington said, "Is that the only fucking ID you got?" (**Allegation B**) The other officer asked § 87(2)(b) "how she got there" referring to her present situation and she said because of her child's father. PO Harrington said, "Blame it on the fucking world." (**Allegation B**)

This incident occurred within the confines of the 52nd Precinct. § 87(2)(b) read PO Harrington's name and shield number from his badge. PO Harrington is a black male, with a small build. This matches PO Harrington's pedigree information, who is a black male assigned to the 52nd Precinct. Because § 87(2)(b) provided the name and shield of this officer, the allegation is pleaded against PO Maurice Harrington, of the 52nd Precinct and his partner is listed as "An officer" from the 52nd Precinct.

§ 87(2)(b) provided a phone statement on March 19, 2008. Mediation was explained to § 87(2)(b) at this time. It was explained that it is voluntary and non-disciplinary for the officer. Investigation was also explained as a potentially disciplinary process. On March 25, 2008, § 87(2)(b) said that she wanted to withdraw her complaint because she did not have the time to pursue it. She said that no members of the NYPD or the CCRB coerced her into withdrawing her complaint and that she is withdrawing her complaint of her own free will. Assistant Supervising Investigator Germain Difo listened to the withdrawal statement to ensure that it complied with agency standards. § 87(2)(b), § 87(2)(g)

Investigator:

Date:

Supervisor:

Date:

Reviewed by:

Date:

Reviewed by:

Date: